

“Regulation” Does Not Exist: Disassembling the Wharton Index

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Ascendant Theory of Housing Unaffordability:

*Higher Level of Land Use
Regulation*

=

Higher Housing Prices



New York Times (2024)

Undifferentiated Regulation

- Wharton Residential Land Use Regulatory Index (WRLURI)
- Survey of **>2,500 local governments** on regulatory restrictiveness
- Number ranging from **-2.6 to 4.9**
- Cited ~1,500 times



Gyourko *et al.*, 2008



Gyourko *et al.*, 2021

Objectives

1. Disassemble the Wharton Index to understand its components.
2. Compare the Wharton Index against actual land use regulations.

Disassembling the Wharton Index

Subindices 1-3:

Perceived Political Pressure + Involvement

General Characteristics of Land Regulatory Process

3. In your community, how involved are the following in affecting residential building activities and/or growth management procedures?

	Organization	No involvement	Less involvement	Moderate involvement	More involved	Very involved
1	a. Local Council, Managers, Commissioners	☐ 1	☐ 2	☐ 3	☐ 4	☐ 5
1	b. Community pressure	☐ 1	☐ 2	☐ 3	☐ 4	☐ 5
2	c. State legislature	☐ 1	☐ 2	☐ 3	☐ 4	☐ 5
3	d. Local courts	☐ 1	☐ 2	☐ 3	☐ 4	☐ 5
3	e. State courts	☐ 1	☐ 2	☐ 3	☐ 4	☐ 5
1	f. Other	☐ 1	☐ 2	☐ 3	☐ 4	☐ 5

Subindices 4-6:

Governing Bodies Believed to be Involved in “By Right” and Not By Right Zoning Changes

4. Which of the following are required to approve residential land-use changes?

Required: Organization is used for any residential land-use changes.

Not Required: If it is not used for that purpose OR does not exist in your community.

Supermajority Required: Any circumstance exists where approval requires more than a simple majority.

For projects that do/not require rezoning, i.e., allowed “by-right”: (Check one per row)

		Required	Supermajority Required	Not Required
4,5	a. Local Planning Commission	☐ 1	☐ 2	☐ 3
4,5	b. Local Zoning Board	☐ 1	☐ 2	☐ 3
4,5	c. Local Council, Managers, Commissioners	☐ 1	☐ 2	☐ 3
4,5	d. County Board of Commissioners	☐ 1	☐ 2	☐ 3
4,5	e. County Zoning Board	☐ 1	☐ 2	☐ 3
4,5	f. Environmental Review Board	☐ 1	☐ 2	☐ 3
6	g. Town Meeting	☐ 1	☐ 2	☐ 3
4,5	h. Public Health Office	☐ 1	☐ 2	☐ 3
4,5	i. Design Review Board	☐ 1	☐ 2	☐ 3
4,5	j. Other	☐ 1	☐ 2	☐ 3

Subindex 7: Existence of a Minimum Lot Size of Some Size Somewhere

7. Do you have a minimum lot size requirement? ☐ a. Yes **1** ☐ b. No **2** (If "No," skip to question 8.)

7A. If "Yes," do you have the same minimum lot size requirement across the entire jurisdiction?

☐ a. Yes **1** ☐ b. No **2**

7B. If you have any minimum size requirement, what is the largest minimum requirement? (Check only one.)

☐ Less than ½ acre **1** ☐ ½ to 1 acre **2** ☐ 1 to under 2 acres **3** ☐ 2 acres or more **4**

Subindex 8 – 11: Building Limits, Affordable Housing, Open Space, Impact Fees

Does your community place annual limits on the total allowable number of permits or dwellings

		Yes	No
8	a. Building permits for single-family homes	☐ 1	☐ 2
8	b. Building permits for multi-family homes	☐ 1	☐ 2
8	c. Number of single-family residential units authorized for construction	☐ 1	☐ 2
8	d. Number of multi-family residential units authorized for construction	☐ 1	☐ 2
8	e. Number of multi-family dwellings	☐ 1	☐ 2
8	f. Number of units in multi-family dwellings	☐ 1	☐ 2

Do developers have to comply with any of the following requirements to build in your jurisdiction?

		Yes	No
9	a. Include affordable housing, however defined, in their projects	☐ 1	☐ 2
10	b. Supply mandatory dedication of space or open space (or fee in lieu of dedication)	☐ 1	☐ 2
11	c. Pay impact fees (allocable share of costs of infrastructure improvement)	☐ 1	☐ 2

Subindex 12:

Length of Time It Takes for Various Approvals

16. What is the current length of time required to complete the review of a “by-right” (permitted under current rules) residential project? (For both rows, enter a number OR check the box on the right.)

	1 Length of time in months	2 We do not have this type of unit
a. Single-family units		☐ 1
b. Multi-family units		☐ 1

17. What is the current length of time required to complete the review of a “not by-right” (i.e., would require an exemption to current rules) residential project? (For both rows, enter a number OR check the box on the right.)

	1 Length of time in months	2 We do not have this type of unit
a. Single-family units		☐ 1
b. Multi-family units		☐ 1

18. Over the last 10 years, how did the length of time required to complete the review and approval of the residential projects in your community change? (Check only one per row.) If you indicated in 5 that the land use does not exist in your jurisdiction, put a check in the first column and do not fill in that row.

Land Use	Land-use is not zoned	Less time	No change	Somewhat longer	Considerably longer
a. Single-family	☐ 1	☐ 2	☐ 3	☐ 4	☐ 5
b. Multi-family	☐ 1	☐ 2	☐ 3	☐ 4	☐ 5

19. Does your community allow rezoning? ☐ a. Yes 1 ☐ b. No 2

20. What is the typical amount of time between application for rezoning and issuance of a building permit for development of:

Unit Type	We do NOT have this unit	Less than 3 months	3 to 6 months	7 to 12 months	1 to 2 years	2 to 3 years	Over 3 years
a. Less than 50 single-family units	☐ 1	☐ 2	☐ 3	☐ 4	☐ 5	☐ 6	☐ 7
b. 50 or more single-family units	☐ 1	☐ 2	☐ 3	☐ 4	☐ 5	☐ 6	☐ 7
c. Multi-family units	☐ 1	☐ 2	☐ 3	☐ 4	☐ 5	☐ 6	☐ 7

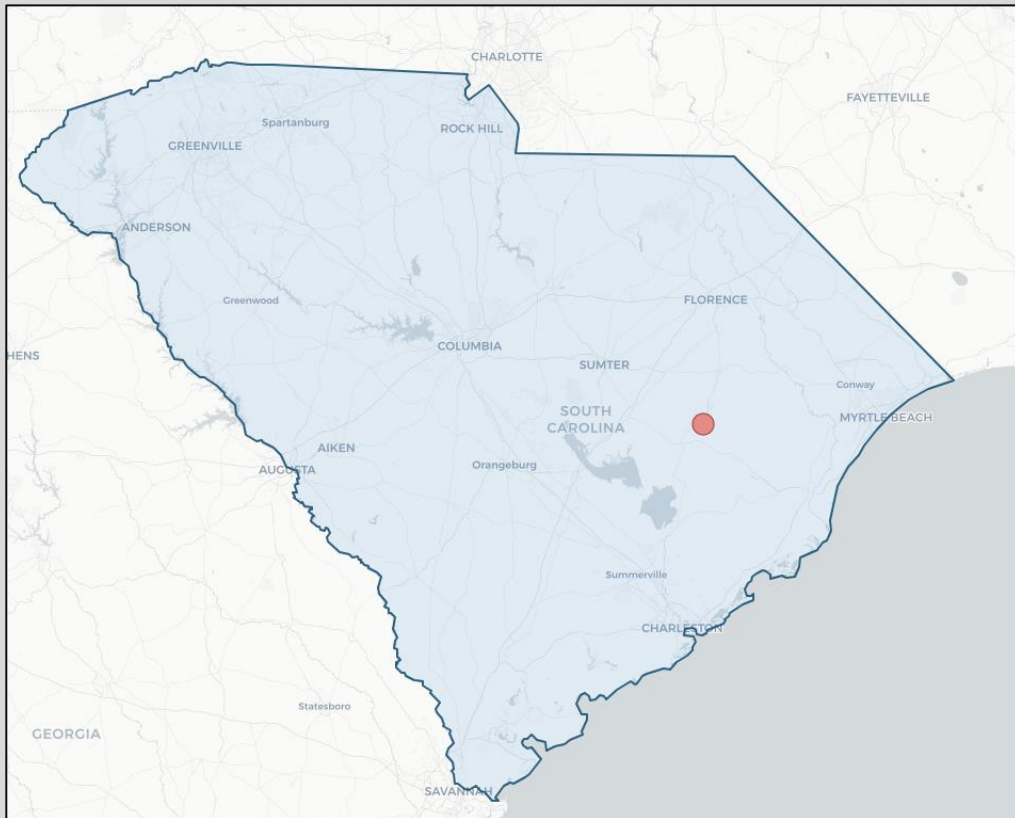
21. Does your community have any subdivisions? ☐ a. Yes 1 ☐ b. No 2

22. What is the typical amount of time between application for subdivision approval and issuance of a building permit for development of:

Unit Type	We do NOT have this unit	Less than 3 months	3 to 6 months	7 to 12 months	1 to 2 years	2 to 3 years	Over 3 years
a. Less than 50 single-family units	☐ 1	☐ 2	☐ 3	☐ 4	☐ 5	☐ 6	☐ 7
b. 50 or more single-family units	☐ 1	☐ 2	☐ 3	☐ 4	☐ 5	☐ 6	☐ 7

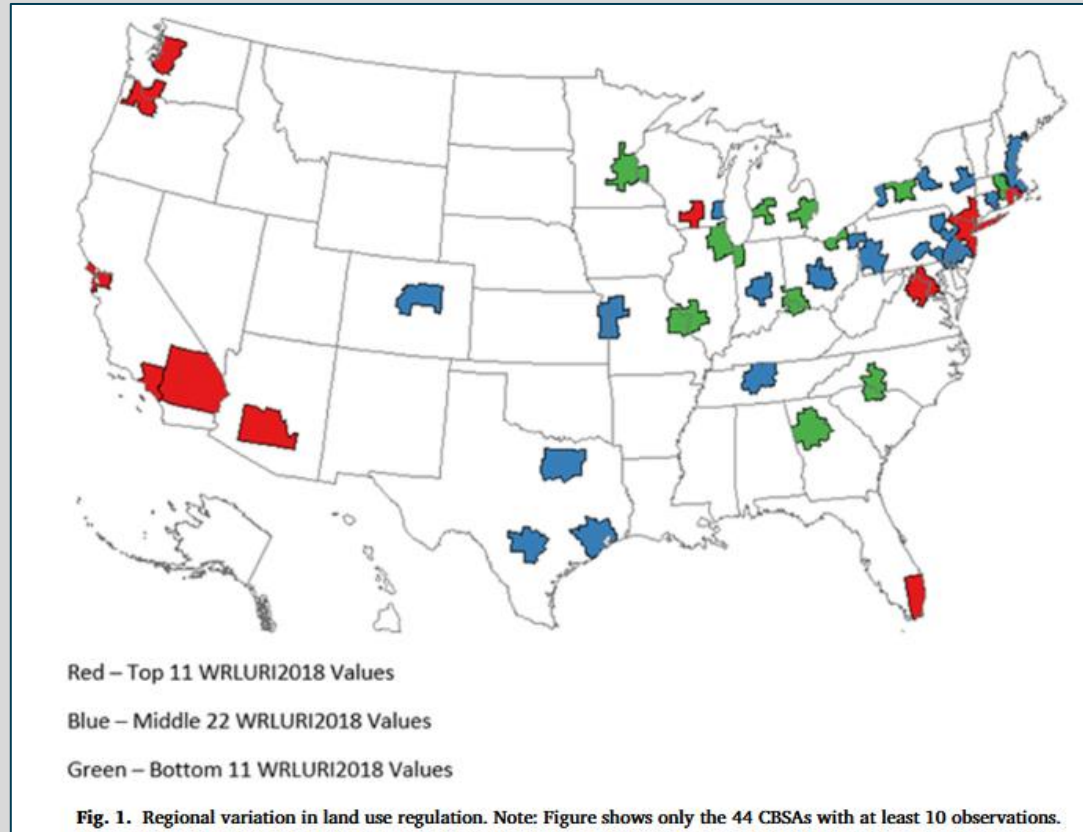
Kingstree, SC

Population: 3,055

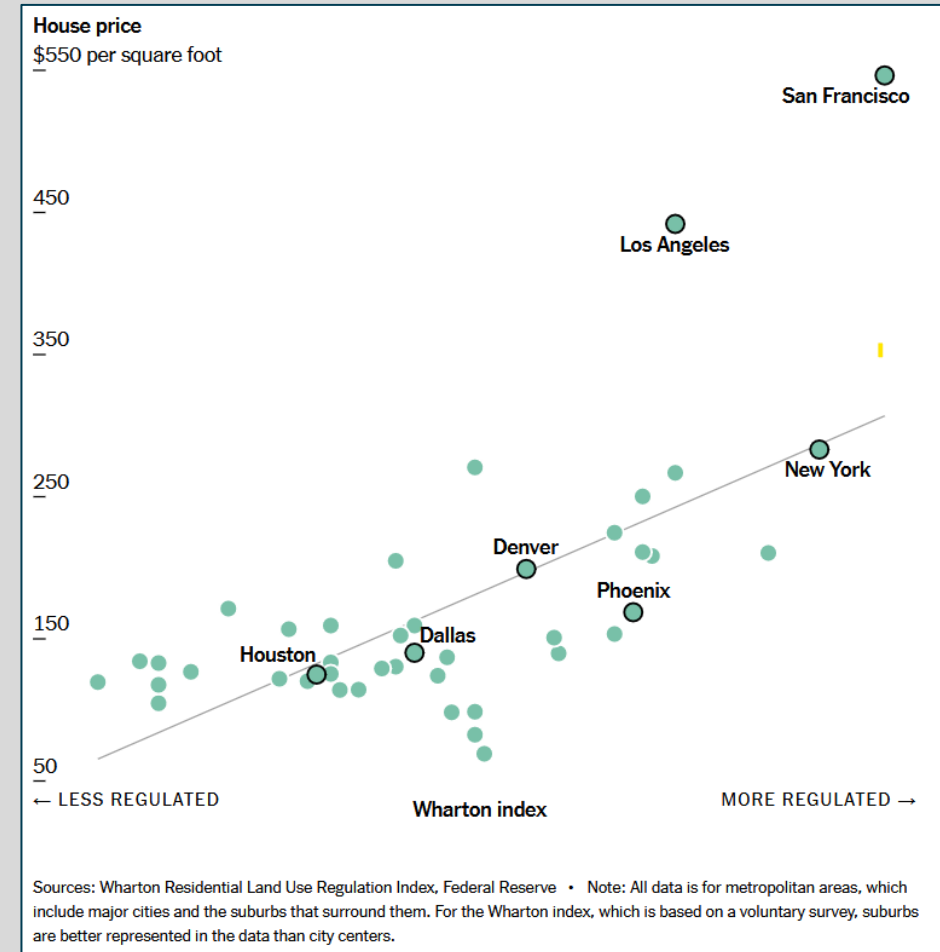


Source: *Municipal Association of South Carolina*

The Result



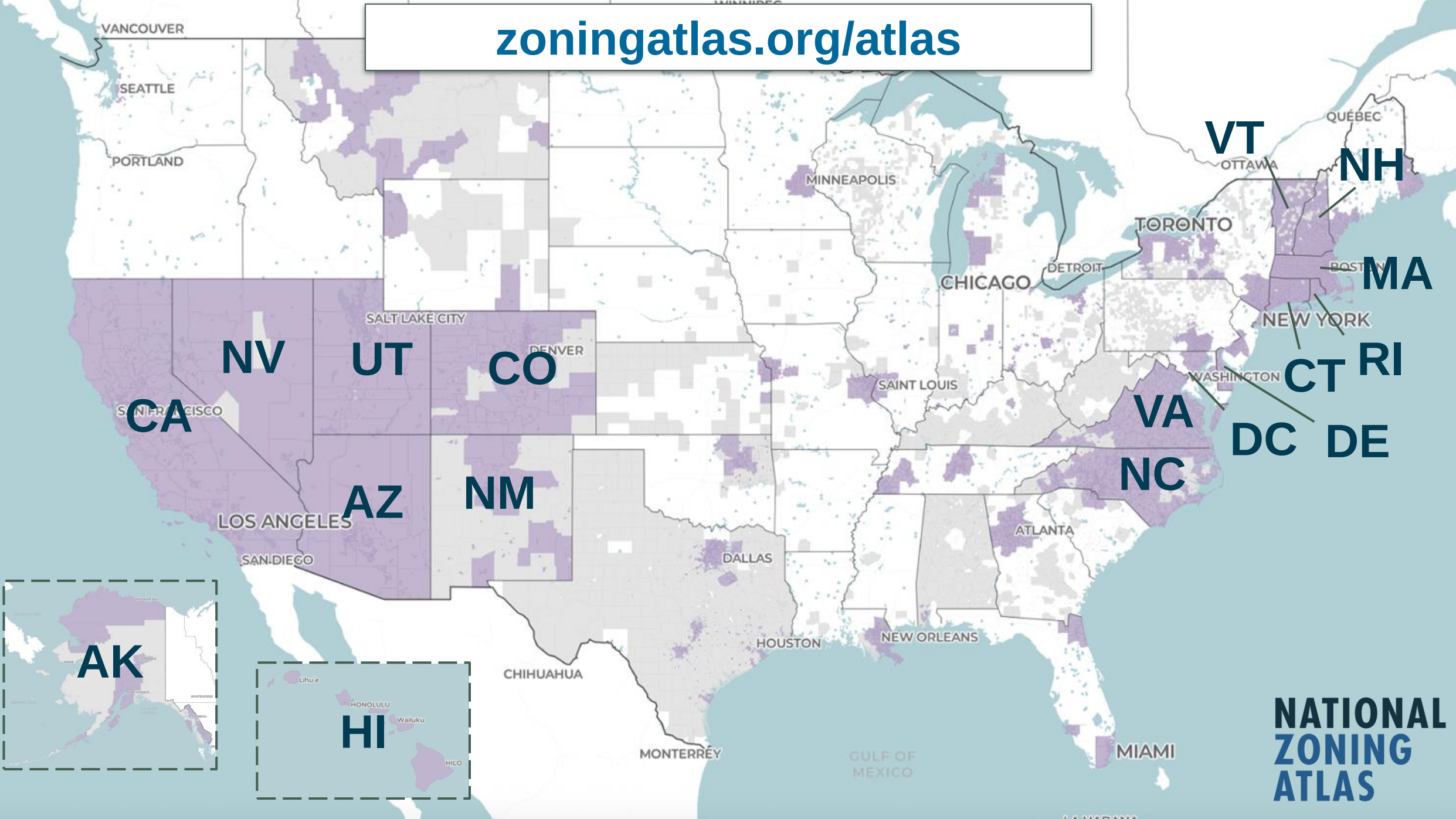
Gyourko *et al.*, 2021



New York Times (2024)

**How does the Wharton Index compare
to actual land use regulations?**

zoningatlas.org/atlas



**NATIONAL
ZONING
ATLAS**

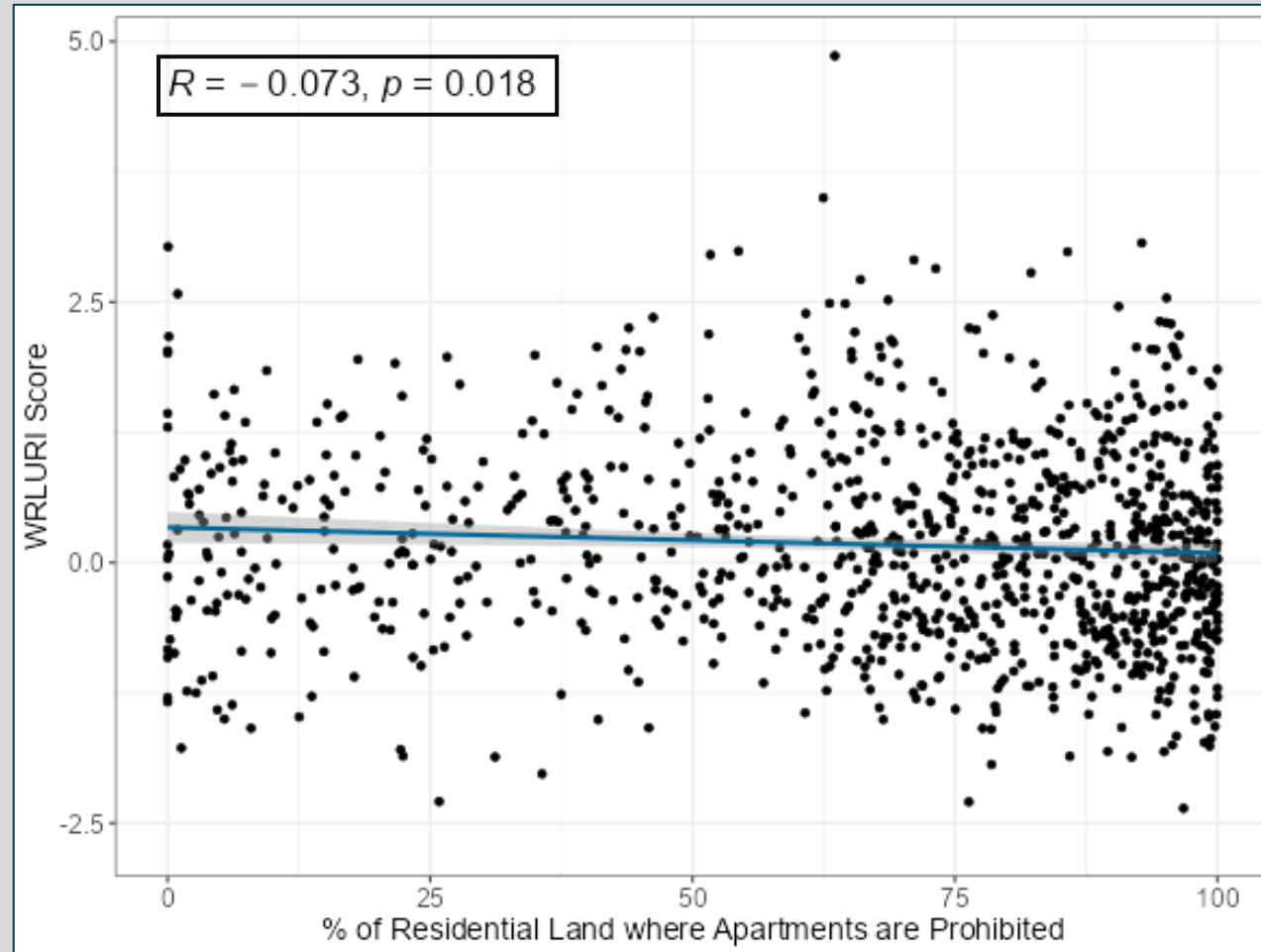
Analysis

Compare WRLURI against three well-known metrics of zoning restrictiveness:

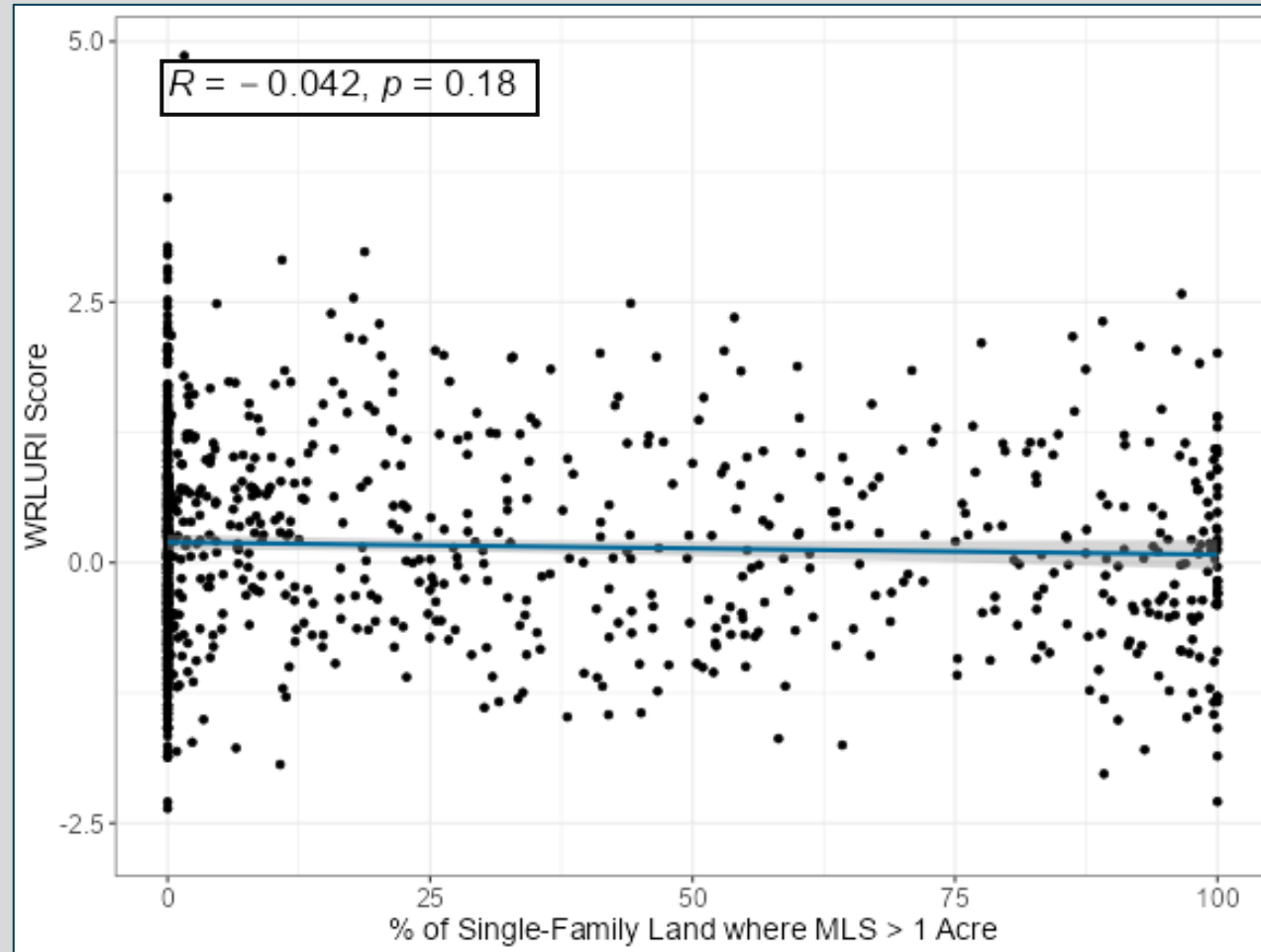
1. % of residential land prohibiting apartments
2. % of single-family land where minimum lot sizes exceed 1 acre
3. % of single-family land where accessory dwelling units (ADUs) are prohibited

1,033 (out of 2,473) jurisdictions in both WRLURI + NZA

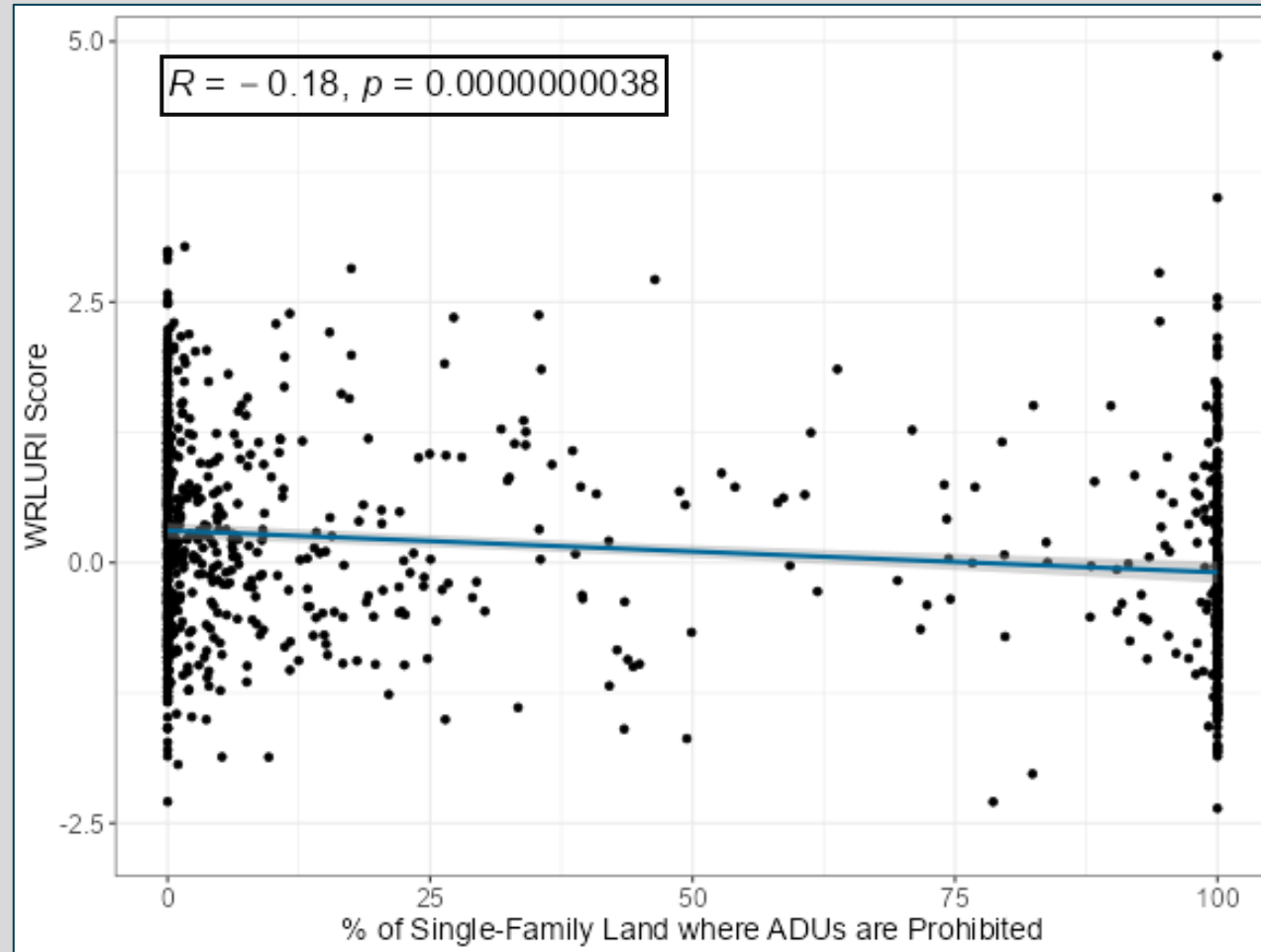
WLRURI vs. % of Residential Land where Apartments are Prohibited



WRLURI vs. % of Single-Family Land where Minimum Lot Sizes Exceed 1 Acre



WRLURI vs. % of Single-Family Land where ADUs are Prohibited



Concluding Thoughts

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What does the wide acceptance of the Wharton Index tell us about the state of urban theory?

My contention: tearing down restrictive concepts like “undifferentiated regulation” can be important part of building up urban theory

Contact

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